2. Section 259.11 is amended to read as follows:

§ 259.11 *Performance bonds.* A bond of not less than 15 percent of the contract price will be required for contracts in excess of $2,000. While for contracts of less than $2,000 in lieu of a surety bond the initial deposit may be retained as a cash bond until the contract is terminated. In any sale the authorized officer may require a bond in excess of that amount. The bond may be that of a corporate surety shown on an approved list issued by the Treasury Department, or a cash bond.

(Sec. 1, 61 Stat. 681; 43 U. S. C. 1185)

CLARENCE A. DAVIS,
Acting Secretary of the Interior.

AUGUST 19, 1955.

[F. R. Doc. 55-6884; Filed, Aug. 24, 1955; 8:47 a. m.]

Appendix C—Public Land Orders

[Public Land Order 1208]

[Misc. 1942667]

NEVADA

REVOKING EXECUTIVE ORDERS NO. 8636 OF JANUARY 14, 1941, NO. 9020 OF JANUARY 12, 1942, AND PUBLIC LAND ORDER NO. 87 OF FEBRUARY 3, 1943

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 8636 of January 14, 1941, withdrawing the following-described public lands for use of the War Department for military purposes as an aviation base is hereby revoked:

MOUNT DIABLO MERIDIAN

T. 2 N., R. 43 E.,
Sec. 1;
Sec. 12, E½.
T. 3 N., R. 43 E.,
Sec. 36.
T. 2 N., R. 44 E.,
Sec. 5;
Sec. 6, lots 1, 2, S½NE¼, SW¼;
Sec. 7, lots 2, 3, 4, SE¼NW¼, E½SW¼, E½;
Sec. 8.
T. 3 N., R. 44 E.,
Secs. 19, 20, 29, 30;
Sec. 31, lot 1, NE¼NW¼, E½;
Sec. 32.

The areas described aggregate 7,338.23 acres.

2. Executive Order No. 9020 of January 12, 1942, transferring control of an airport on the following-described lands near Tonopah, Nevada to the War Department, is hereby revoked:

MOUNT DIABLO MERIDIAN

T. 2 N., R. 44 E.,
Sec. 6, lots 3, 4, 5, 6, 7, SE¼NW¼, E½SW¼;
Sec. 7, lot 1, NE¼NW¼.
T. 3 N., R. 44 E.,
Sec. 31, lots 2, 3, 4, E½SW¼, SE¼NW¼.

The areas described aggregate 617.87 acres.

3. Public Land Order No. 87 of February 3, 1943, withdrawing the following-described public lands for use of the War Department as a safety zone for rifle ranges, is hereby revoked:

MOUNT DIABLO MERIDIAN

T. 3 N., R. 44 E.,
Secs. 3, 4, 5, 8, 9, 10, 16, 17 and 21.

The areas described aggregate 5,763.72 acres.

4. Of the lands described in paragraphs 1, 2 and 3 above, approximately 4,118 acres have been disposed of pursuant to Section 13 (d) of the Surplus Property Act of 1944 as amended. The lands restored to application under the public-land laws by this order are described as follows:

MOUNT DIABLO MERIDIAN

T. 2 N., R. 43 E.,
Sec. 12, SE¼.
T. 3 N, R. 43 E.,
Sec. 36 (that portion lying north of U. S. Highway #6)
T. 2 N., R. 44 E.,
Sec. 7, S½.
T. 3 N., R. 44 E.,
Secs. 3, 4, 5, 8, 9, 10, 16, 17;
Sec. 19, S½;
Secs. 20, 21, 29, 30;
Sec. 31 (that portion lying north of U. S. Highway #6)
Sec. 32.

The areas described aggregate approximately 9,622 acres.

The lands are seasonal grazing lands located 6 to 11 miles east and northeast of Tonopah, Nevada. Most of them are accessible by unimproved roads. The topography is flat valley floor to gently sloping aluvial fans. The soil is sandy to gravelly, and vegetation consists of shadscale and a sparse cover of annual species in favorable seasons. They contain no water, minerals or timber.

No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

This order shall not otherwise become effective to change the status of the restored lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition and selection, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference-right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284), as amended.

Veterans' preference-right application under the said act of September 27, 1944, may be received on or before 10:00 a. m. on the 35th day after the date of this order, and those covering the same lands shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by the general public under the public-land laws, including the mineral-leasing laws, received on or before 10:00 a. m. on the 126th day after the date of this order shall be treated as though simultaneously filed at that time, where the applications are for the same lands; otherwise, priority of filing shall govern.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Reno, Nevada.

ORME LEWIS,
Assistant Secretary of the Interior.

AUGUST 19, 1955.

[F. R. Doc. 55-6883; Filed, Aug. 24, 1955; 8:46 a. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

Subchapter A—Civil Air Regulations

[Supp. 18]

PART 40—SCHEDULED INTERSTATE AIR CARRIER CERTIFICATION AND OPERATION RULES

OPERATION BEYOND A SCHEDULED TERMINAL

This supplement outlines circumstances when incorporation of procedures for continued operation beyond a scheduled terminal may be authorized in the air carrier's manual.

The following policy is hereby adopted:

§ 40.391-1 *Circumstances when incorporation of procedures may be authorized in the air carrier's manual for continued operation beyond a scheduled terminal (CAA policies which apply to § 40.391 (b)).* Authority to incorporate procedures in the air carrier manual for the continuation of flight beyond a scheduled terminal with an airplane which has inoperative required equipment[1] will be given to an air carrier when the air carrier shows that:

(a) Such procedures specify the required equipment that may be inoperative and the particular circumstances and conditions under which the airplane may continue in air transportation beyond a scheduled terminal without adversely affecting the safety of the flight; and

(b) Such procedures specify the place to which the flight may be continued and the inoperative required equipment will be repaired or replaced in lieu of the terminal stop: *Provided,* That the airplane may not continue flight beyond a place at which it is normally scheduled for the accomplishment of the next daily service or inspection by the air carrier.

(Sec. 205, 52 Stat. 984, 49 U. S. C. 425. Interprets or applies secs. 601, 605, 52 Stat. 1007, 1010, as amended; 49 U. S. C. 551, 555)

This supplement shall become effective September 15, 1955.

[SEAL] F. B. LEE,
Administrator of Civil Aeronautics.

[F. R. Doc. 55-6904; Filed, Aug. 24, 1955; 8:51 a. m.]

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[1] Required equipment is that equipment which is specified in § 40.170.